

HEALTH AND SAFETY EXECUTIVE

Construction Division — Yorkshire & North East

PRELIMINARY INVESTIGATION REPORT

Fatal incident — partial collapse of cantilevered loading platform

HSE reference	YNE/CON/2023/4471-F
Notified under	RIDDOR 2013 reg. 6(1) (work-related death) — F2508 received 14.11.2023 at 13:04
Site	Brackenmoor Wharf Redevelopment, Kirkstall Bank Road, Hunslet, Leeds LS10 1QF
Principal contractor	Meridian Structures Limited (co. no. 07731942)
Client (CDM 2015 reg. 4)	Coldbrook Capital LLP (OC392118)
Deceased	Tomasz WIECZOREK, d.o.b. 02.03.1989, Polish national, engaged through Northgate Site Solutions Ltd
Injured person	Deniz AKSOY, d.o.b. 19.07.1982, employed by TowerLine Access Ltd
Inspector	Kayleigh ORMEROD-SUSS HM Inspector of Health and Safety
Report date	22 January 2024 (revised 09 April 2024 — see para. 34)

A. STATUS OF THIS REPORT

1. This is a preliminary report prepared for the purposes of an investigation under s.20 of the Health and Safety at Work etc. Act 1974 (“HSWA”) and for the assistance of HM Coroner. It is not a final report. Enforcement decisions remain reserved. Certain conclusions are provisional because material described at paragraphs 21–27 was obtained late and has not been fully reconciled.
2. A joint protocol under the Work Related Deaths Protocol (2011) is in operation between HSE, West Yorkshire Police (DI S. Achterberg, Major Investigation Team) and the Crown Prosecution Service. Primacy currently rests with the police pending a decision on corporate manslaughter under the Corporate Manslaughter and Corporate Homicide Act 2007.

B. THE WORKS

3. Brackenmoor Wharf is a mixed-use redevelopment of a former grain warehouse comprising a 9-storey reinforced concrete frame with a precast architectural cladding envelope. Meridian Structures Limited (“Meridian”) is engaged as design-and-build contractor under a JCT Design and Build Contract 2016 (as amended) dated 3 April 2023 and is the principal contractor for the purposes of the Construction (Design and Management) Regulations 2015.
4. Access scaffolding to the east and south elevations was erected by TowerLine Access Ltd (“TowerLine”), a domestic subcontractor. TowerLine entered creditors’ voluntary liquidation on 3 February 2025. Its records were obtained partly from the liquidator and partly by digital forensic recovery.
5. The scaffold incorporated seven cantilevered loading bays (“hop-up bays”), designated LB-1 to LB-7, used to receive precast cladding panels landed by tower crane before manual placement. Loading bays are temporary works requiring design and independent check under Meridian’s own procedure MSL-TW-03 (Rev. 4) and BS 5975:2019.

C. THE INCIDENT

6. At approximately 11:22 on Tuesday 14 November 2023, loading bay LB-7 at level 7 (deck height approximately 21.4 m above the yard slab) failed. The east tie line at levels 6 and 7 was found on post-incident survey to be incomplete. The bay rotated outward and detached, together with approximately 11 m of adjacent scaffold on the east elevation.
7. Mr Wieczorek was standing on the LB-7 deck receiving a slung load of two precast panels. He fell approximately 21 m to the yard slab and was pronounced dead at the scene at 11:58. Provisional cause of death per Dr H. Okonjo-Barr (post-mortem 16.11.2023) is multiple blunt force injuries.
8. Mr Aksoy was working at level 5 on the same elevation. He was struck by falling scaffold tube and sustained an incomplete spinal cord injury at T9. He remains a wheelchair user.
9. Two further operatives, identified in the site register only as agency numbers NSS-4402 and NSS-4419, were present at level 6 and are not accounted for in any statement obtained by HSE. Northgate Site Solutions Ltd has stated in correspondence that its assignment records for the week commencing 13 November 2023 “cannot be located”.

D. IMMEDIATE AND UNDERLYING FINDINGS (PROVISIONAL)

10. Ties. Post-incident survey of the recovered structure (HSE Specialist Inspector, Structural Engineering, Mr J. Farrant-Doyle, ref. SIS/1188) identified anchor positions at grid E4, E5 and E6 on levels 6 and 7 with no anchor installed and no drilled hole. On any view, three through-ties specified on drawing SD-BW Rev. C were absent at the time of collapse. Mr Farrant-Doyle's provisional opinion is that the absence of these ties reduced the overturning resistance of the LB-7 bay by between 38% and 61%, the range reflecting uncertainty as to the effectiveness of two facade fixings that could not be recovered.

11. Loading. The certificate produced by Meridian in respect of LB-7 (document TWDC-BW-07, Bundle D09) states a safe working load of 2,000 kg. Scaffold design drawing SD-BW Rev. C, which is the only design drawing HSE has been able to authenticate, states a safe working load for the level 7 bay of 750 kg. The load being landed at the time of failure is calculated at approximately 1,410 kg (two panels at 605 kg each, plus two operatives and equipment). If the figure of 750 kg is correct, the bay was loaded to approximately 188% of its design capacity.

12. Wind. The Meridian lifting plan (LP-BW-11) requires lifting operations to cease at a gust speed exceeding 23 mph. The manually completed site anemometer log for 14 November 2023 records 21 mph at 11:15. The Met Office certified record for Leeds Bradford Airport records a maximum gust of 43 mph at 11:20. HSE has not been able to locate or test the site anemometer, which Meridian states was "lost during site clearance". Mr Farrant-Doyle's provisional view is that wind loading alone would not have caused failure of a correctly tied bay but may have been determinative of the moment of failure of an untied one.

13. Temporary works control. Meridian's procedure MSL-TW-03 (Rev. 4) requires a Category 2 independent check for loading bays and appoints a Temporary Works Coordinator. The nominated Temporary Works Coordinator on the register is Mr Ruairidh DELACROIX-HALE, Site Manager, who also held the roles of Site Manager, Appointed Person for lifting operations and Permit Issuing Officer. HSE considers this concentration of incompatible roles to be a material organisational failing. The register bears a manuscript annotation, undated and in an unidentified hand: "TWC role to move to FK when resource allows."

14. Inspection records. Two mutually inconsistent versions of the same statutory inspection record required by reg. 12 of the Work at Height Regulations 2005 have been recovered (Bundle D08). HSE has not determined which is authentic. This is a matter under active police investigation and no conclusion is expressed.

15. Certification. The metadata associated with TWDC-BW-07 is inconsistent with the date appearing on its face. This is likewise the subject of police investigation (Bundle D09). HSE notes but does not adopt the allegation of falsification.

E. LINES OF INQUIRY NOT YET CONCLUDED

16. Whether Mr Wieczorek received an induction. The induction register bears an entry "T. Wieczorek" dated 06.11.2023, but the signature does not resemble the signature on his agency assignment schedule, and the induction trainer named ("F. Kettleborough") states she was on annual leave from 03.11.2023 to 10.11.2023. Meridian's HR system shows that leave as "cancelled", with the cancellation recorded on 20.11.2023.

17. Whether Mr Wieczorek was a "worker" of Meridian for the purposes of s.2 HSWA or a person affected by the undertaking under s.3, and the allocation of duties as between Meridian, TowerLine and Northgate Site Solutions Ltd.

18. The extent of the involvement of Mr Aldwyn FERRIS, Construction Director, in operational decisions on this site. Mr Ferris denies any operational role (Bundle D07). Material at Bundle D11 and D13 is capable of contradicting that denial. HSE has not resolved the contradiction.

19. Whether the decision to continue lifting operations after 10:40 on 14 November 2023 was taken by any person, and if so by whom. The site daily log records suspension at 10:40 (Bundle D14). Crane and delivery records for the same morning are inconsistent with that entry.

20. The reason for the dismissal of Ms Priya RAGHUNATHAN on 8 December 2023. HSE makes no finding, that being a matter for the Employment Tribunal, but records that Ms Raghunathan made a disclosure to this Inspector by telephone on 17 November 2023 at 08:41, the substance of which is set out at Bundle D18.

F. LATE MATERIAL

21. On 2 April 2024 Meridian's solicitors, Holloway Brant LLP, disclosed a further 1,417 documents described as having been "identified on a legacy server during migration". Nineteen of those documents post-date HSE's notice under s.20(2)(j) HSWA served on 21 November 2023.

22. Included in that late disclosure is an email chain (Bundle D10) which, on its face, is capable of bearing on the state of knowledge of Meridian's directing mind. Meridian contends that part of that chain is privileged and was disclosed in error. HSE has sequestered the disputed page pending resolution.

23. A mobile telephone attributed to Mr Ferris and seized on 22 November 2023 had been restored to factory settings. Mr Ferris states this was a routine device upgrade. A trade-in receipt provided by his solicitors is dated 29 November 2023.

24. A single SMS message sent from the deceased's handset at 09:41 on 14 November 2023 has been recovered from the recipient's device. Its content is set out at Bundle D11. The deceased's own handset was destroyed in the fall and could not be examined.

25. Mr Gareth PYLE provided a witness statement to HSE on 21 November 2023 and a materially different supplementary statement on 14 March 2024 (Bundle D04, D05). HSE was informed on 2 May 2024 that Mr Pyle had by then received payments totalling £4,500 from investigators instructed by Coldbrook Capital LLP's solicitors. Neither statement discloses that fact.

26. The Category 2 checker named on TWDC-BW-07, Mr N. ASHGROVE-PIKE CEng of Halbrook Temporary Works Consultants Ltd, has since relocated to the United Arab Emirates and has declined a voluntary interview through solicitors.

27. Meridian has installed covert camera equipment in the site welfare cabin. HSE became aware of this on 11 March 2024. No data protection impact assessment has been produced. Footage from that equipment is relied upon by Meridian in the Employment Tribunal proceedings.

G. PROVISIONAL CONCLUSIONS

28. There is evidence capable of establishing breaches of ss.2(1) and 3(1) HSWA 1974, reg. 4 and reg. 8 of the Work at Height Regulations 2005, and regs. 13 and 15 of the CDM Regulations 2015.

29. Whether the way in which Meridian's activities were managed or organised by its senior management was a substantial element in any gross breach, for the purposes of s.1(3) and s.8 of the Corporate Manslaughter and Corporate Homicide Act 2007, cannot presently be determined on the material available and turns substantially on the resolution of the contradictions identified at paragraphs 12, 14, 15, 18 and 19 above.

30. Consent of the Director of Public Prosecutions under s.17 of the 2007 Act will be required for any corporate manslaughter charge.

31. HSE expresses no view on the commercial disputes between Meridian and Coldbrook Capital LLP save to record that the timing of Milestone 6 certification (Bundle D15, D16) may be relevant to motive.

32. A Prohibition Notice was served on 14 November 2023 (PN/YNE/23/9912). An Improvement Notice served on 28 November 2023 (IN/YNE/23/9944) was withdrawn on 19 January 2024 following representations, for reasons recorded on the enforcement file.

33. This report should not be treated as evidence of the truth of the matters recorded in the documents referred to.

34. **Revision note (09.04.2024):** paragraph 12 previously recorded the design safe working load as 1,000 kg. That figure was taken from an uncontrolled copy of drawing SD-BW Rev. B. Rev. C is the controlled revision and states 750 kg. Rev. B was superseded on 19 September 2023. It has not been established which revision was on site on 14 November 2023.

Signed:

K. Ormerod-Suss

Name / role:

K. Ormerod-Suss — HM Inspector of Health and Safety

Date:

9 April 2024

Note:

Countersigned: T. Bellweather-Nkemdirim, Principal Inspector